

WORKMAN ADVENTURE COMPOUND

PARTICIPATION WAIVER, ASSUMPTION OF RISK, RELEASE OF LIABILITY, AND INDEMNIFICATION AGREEMENT

Waiver Version 1.0

Property Location: 10895 West Eight Point Lake Road, Lake, Michigan 48632

IMPORTANT: This agreement affects important legal rights. Read the entire document before signing. This Version 1.0 draft should be reviewed by a Michigan attorney before electronic signatures are activated.

This Participation Waiver, Assumption of Risk, Release of Liability, and Indemnification Agreement is entered into by the undersigned participant in consideration for being permitted to enter, use, and participate in activities at the Workman Adventure Compound and related property owned, occupied, managed, or made available by Paul D. Workman and Holly M. Workman. For purposes of this agreement, Paul D. Workman, Holly M. Workman, the Workman Adventure Compound, and their family members, representatives, agents, volunteers, guests, successors, and assigns are collectively referred to as the "Released Parties."

1. Covered Activities

I understand that activities at or associated with the Workman Adventure Compound may include, but are not limited to:

- Operation or use of all-terrain vehicles, utility vehicles, motorcycles, three-wheelers, four-wheelers, go-carts, snowmobiles, bicycles, tractors, boats, kayaks, canoes, trailers, tools, machinery, and other equipment.
- Hunting, fishing, target shooting, firearm use, archery, and use of shooting areas or firing lanes.
- Hiking, climbing, swimming, boating, camping, cooking, fire-pit use, wood cutting, construction projects, property maintenance, and outdoor recreation.
- Organized or informal games, competitions, challenges, events, and WAC adventures.
- Travel to or participation in activities away from the property that are connected with the Workman Adventure Compound.
- Any other recreational, social, sporting, physical, or outdoor activity in which I voluntarily participate.

These are collectively referred to as the "Activities."

2. Acknowledgment of Risks

I understand that the Activities may be dangerous and involve risks that cannot be completely eliminated, even when reasonable safety precautions are used. These risks may include, but are not limited to:

- Collisions, falls, overturns, loss of control, mechanical failure, and equipment malfunction.
- Uneven ground, mud, water, ice, snow, rocks, trees, branches, holes, fences, trails, roads, structures, and other natural or artificial conditions.
- Firearms, ammunition, bows, arrows, knives, tools, machinery, vehicles, fires, fuel, electricity, and hazardous materials.
- Weather conditions, darkness, limited visibility, remote locations, delayed emergency response, and limited access to medical care.
- Encounters with wildlife, insects, plants, allergens, and communicable illnesses.
- Actions, mistakes, negligence, or inexperience of other participants, guests, spectators, or third parties.
- Serious bodily injury, illness, disability, paralysis, property damage, emotional distress, or death.

I knowingly and voluntarily choose to participate despite these risks.

3. Voluntary Assumption of Risk

I knowingly and voluntarily accept and assume all risks associated with my presence on the property and participation in the Activities, whether those risks are known or unknown, anticipated or unanticipated, inherent or otherwise.

I accept full responsibility for any injury, illness, death, loss, or property damage that I may suffer or cause while entering, remaining on, using, or leaving the property or participating in any Activity.

4. Participant Responsibilities

I agree that I will:

1. Follow all applicable laws, safety rules, posted instructions, and directions from the property owners or activity organizers.
2. Use reasonable care and good judgment.
3. Not participate in an Activity for which I am unqualified, physically unable, improperly equipped, or uncomfortable.
4. Inspect equipment before using it and stop using equipment that appears damaged or unsafe.
5. Use appropriate protective equipment when required or reasonably appropriate.
6. Immediately report unsafe conditions, accidents, injuries, or damaged equipment.
7. Not operate a vehicle, firearm, boat, tool, or equipment while impaired by alcohol, cannabis, controlled substances, medication, fatigue, or any other condition that could affect safe operation.
8. Stop participating whenever I believe conditions have become unsafe.

I understand that signing this agreement does not authorize me to violate any law or ignore any safety requirement.

5. Release and Waiver of Liability

To the fullest extent permitted by Michigan law, I, on behalf of myself and my heirs, estate, personal representatives, executors, administrators, successors, and assigns, release and forever discharge the Released Parties from claims, demands, causes of action, damages, losses, costs, or expenses arising from or related to:

- My presence on or use of the property.
- My participation in the Activities.
- My use of vehicles, equipment, firearms, tools, structures, watercraft, trails, or facilities.
- Any injury, illness, death, property damage, or other loss connected with those activities.

This release includes claims based on the ordinary negligence of a Released Party to the extent such claims may lawfully be released. This agreement is not intended to release liability that cannot legally be waived under Michigan law.

6. Covenant Not to Sue

I agree not to bring or maintain a lawsuit, claim, or other legal proceeding against a Released Party for a matter covered by this agreement. If I bring a claim contrary to this agreement, the Released Parties may use this agreement as a complete or partial defense to that claim.

7. Indemnification and Hold Harmless

To the fullest extent permitted by law, I agree to indemnify, defend, and hold harmless the Released Parties from claims, liabilities, losses, damages, judgments, costs, and reasonable attorney fees arising from:

- My conduct or participation in the Activities.
- Injury or damage that I cause to another person or property.
- My violation of law, safety rules, or instructions.
- My misuse of vehicles, firearms, tools, equipment, structures, or facilities.
- A claim brought by or on behalf of me that is covered by this agreement.

8. Medical Treatment and Emergency Response

I authorize the property owners, activity organizers, or other persons present to request emergency medical assistance for me when they reasonably believe it is necessary.

- The property may be located some distance from emergency medical services.
- Immediate medical assistance may not be available.
- The Released Parties are not obligated to provide medical care, transportation, rescue services, or trained medical personnel.
- I am responsible for medical, ambulance, rescue, transportation, and related expenses incurred on my behalf.

9. Personal Property

I am responsible for my vehicles, equipment, firearms, tools, clothing, electronics, valuables, and other personal property. The Released Parties are not responsible for personal property that is lost, stolen, damaged, destroyed, or left behind, except to the extent liability cannot lawfully be waived.

10. Minors

A participant under 18 years of age may not electronically sign this agreement independently. A parent or legal guardian must complete any required minor-participant agreement and must identify each minor for whom the adult has legal authority to sign.

A parent or guardian's signature does not guarantee that every claim belonging to a minor can legally be waived. Minor-participant language should be separately reviewed by a Michigan attorney before the app permits electronic signing for minors.

11. Duration

This agreement takes effect when signed and remains effective for one year from the signing date, unless replaced or superseded by a later waiver that I am required to sign.

A separate signature may be required when a new waiver version is issued, the scope of WAC activities materially changes, the participant reaches adulthood, the participant's legal guardian changes, or the property owners determine that a new agreement is appropriate.

12. Governing Law and Venue

This agreement shall be governed by the laws of the State of Michigan. Any legal action concerning this agreement shall be brought in a court of competent jurisdiction in Michigan, subject to applicable law.

13. Severability

If any provision of this agreement is determined to be invalid or unenforceable, that provision shall be limited or removed only to the extent necessary. The remaining provisions shall continue in full force and effect.

14. Entire Agreement

This document constitutes the entire agreement regarding the matters addressed in it and replaces prior oral or written understandings concerning those matters. Any amendment must be in writing and approved by the property owners.

15. Electronic Record and Signature

I agree to conduct this transaction electronically. I understand that:

- The waiver is being provided to me as an electronic document.
- I may open, save, download, or print the waiver before signing.
- Typing my full legal name and selecting the acknowledgment checkbox constitutes my electronic signature.
- My electronic signature is intended to have the same effect as my handwritten signature.

- The system may record my name, account information, date and time, waiver version, document identifier or hash, and technical information associated with the transaction.
- A copy of the waiver version I signed will remain available for retention or printing.

16. Participant Acknowledgment

By signing below, I certify that:

9. I have read the complete agreement.
10. I understand its terms.
11. I had the opportunity to ask questions or seek legal advice.
12. I understand that I am giving up important legal rights.
13. I am signing voluntarily and without coercion.
14. I am at least 18 years old and legally competent to sign.
15. I intend my typed name to serve as my legally binding electronic signature.

Electronic Signature Record

Participant Full Legal Name	Entered electronically
Participant Email	Recorded from authenticated WAC account
Waiver Version	1.0
Date and Time Signed	Recorded automatically
Document SHA-256 Hash	Recorded by the WAC system
Acknowledgment Accepted	Recorded electronically
Electronic Signature	Typed name plus affirmative acknowledgment

Electronic acknowledgment: "I have reviewed the complete waiver, understand its terms, voluntarily accept those terms, and intend my typed name to serve as my electronic signature."

ATTORNEY REVIEW REQUIRED BEFORE ACTIVATION

This document was prepared from the waiver contained in the WAC guidebook and revised for electronic use. Sections addressing release, indemnification, ordinary negligence, minors, duration, and electronic execution should be reviewed by a Michigan attorney before participants are permitted to sign.